

ELIZABETH II



1982 CHAPTER xvi

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936, relating to Woolworths (Aberdeen Development). [30th July 1982]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c 52. Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation of Order in schedule.
2. This Act may be cited as the Woolworths (Aberdeen Development) Order Confirmation Act 1982. Short title.

SCHEDULE

WOOLWORTHS (ABERDEEN DEVELOPMENT)

Provisional Order to authorise Woolworth Leasing Limited to construct buildings or structures bridging over The Green and Martin's Lane in the district of the City of Aberdeen; and for other purposes.

Whereas Woolworth Leasing Limited (hereinafter referred to as "the Company") are a company having objects which include the acquisition, management or development of land:

And whereas the Company are a wholly-owned subsidiary of F. W. Woolworth & Co. Limited (hereinafter referred to as "the parent Company") who carry on business in the United Kingdom in the retail sale of a variety of products:

And whereas both of the said companies are companies within the meaning of the Companies Acts 1948 to 1967 and are companies limited by shares:

And whereas amongst shop premises held by the parent Company are those known as 111-119 Union Street in the district of the City of Aberdeen (hereinafter referred to as "the district") at which the parent Company have carried on business over many years; and those premises abut at the rear upon the north side of the highway known as The Green in the district:

And whereas the buildings comprised in the said premises are insufficient for the expanding trading activities of the parent Company:

And whereas the parent Company own certain premises lying to the south of The Green and abutting upon the highway known as Martin's Lane:

And whereas it is expedient that the shop premises at 111-119 Union Street should be extended and that for the utilisation of the site thereof to the best advantage the said premises should be connected to buildings or structures bridging over The Green and Martin's Lane and thence to the premises abutting on Martin's Lane:

And whereas it is accordingly expedient that the Company should be authorised to construct such buildings or structures as in this Order provided and to stop up Martin's Lane, and that the other provisions of this Order should be enacted:

And whereas a plan and sections showing the line and levels of the works authorised by this Order, such plan showing also the lands which may be used under the powers of this Order and for the purposes of this Order, together with a book of reference to the said plan containing the names of the owners or reputed owners, lessees or reputed lessees and of the occupiers of all such lands and describing the same, have been deposited with the sheriff clerk of the Sheriff Court District of Aberdeen and such plan, sections and book of reference are respectively referred to in this Order as the deposited plan, sections and book of reference:

And whereas the purposes of this Order cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

1936 c. 52.

Now, therefore, in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

1. This Order may be cited as the Woolworths (Aberdeen Short title. Development) Order 1982.

2. In this Order, unless the subject or context otherwise requires— Interpretation.

“ the Company ” means Woolworth Leasing Limited;

“ the district ” means the district of the City of Aberdeen;

“ the district council ” means the City of Aberdeen District Council;

“ The Green ”, “ Martin's Lane ” and “ Union Street ” mean respectively the highways of those names in the district;

“ the regional council ” means the Grampian Regional Council;

“ telegraphic line ” has the same meaning as in the Telegraph Act 1878;

1878 c. 76.

“ the works ” means the works described in section 3 (Power to make works) of this Order and includes the same as renewed or altered under subsection (2) of the said section 3 and any works constructed under section 4 (Subsidiary works) of this Order.

3.—(1) Notwithstanding anything in any other enactment or rule of law, or any interest or other right of the public, the inhabitants at large or other persons in, on or over The Green or Martin's Lane; but subject to the provisions of this Order, the Company, when Power to make works.

pursuant to section 9 (Acquisition of rights in or over certain highways) of this Order they have acquired from the district council such rights and interests as they may have in, and in the air space above, The Green or Martin's Lane (as the case may be) may make, in the line and situation and upon the lands delineated on the deposited plan and described in the deposited book of reference and according to the levels shown on the deposited sections, the works hereinafter described, that is to say:—

Work No. 1 A building or structure above the level of The Green, commencing in the centre of the carriageway of The Green at a point lying on an imaginary line in extension of the western boundary of the premises known as 111–119 Union Street in the district and terminating at a point in the centre of the said carriageway 27 metres or thereabouts in an east-north-easterly direction measured from the point of commencement.

Work No. 2 A building or structure above the level of Martin's Lane commencing at a point in the centre of that Lane at its junction with The Green and terminating at a point in the centre of the Lane 21·3 metres or thereabouts in a southerly direction measured from the point of commencement.

(2) Subject to the provisions of this Order the Company may from time to time within the limits of lateral deviation shown on the deposited plan maintain and renew the works or any part thereof and may make minor alterations and additions thereto.

**Subsidiary
works.**

4.—(1) Subject to the provisions of this Order, the Company for the purposes of or in connection with the works may—

- (a) construct, execute, place and keep all such minor subsidiary works and conveniences as they may find necessary or expedient for or in connection with the construction, maintenance or renewal of the works or the making of minor alterations thereto;
- (b) temporarily or permanently alter, open up or otherwise interfere with The Green or use, strengthen, widen, divert, improve, alter or otherwise interfere with drains, sewers, telegraphic, telephonic, electric, gas, water and other pipes, lines, wires, works and apparatus (all of which are hereinafter in this section referred to as "apparatus") in The Green providing where possible a proper substitute before interrupting the passage of sewage, electricity, gas or water in or through any apparatus:

Provided that nothing in this section shall authorise the Company to interfere with the surface of The Green otherwise than for or in connection with the construction, maintenance or renewal of the supporting foundations comprised in the works.

(2) In the exercise of the powers conferred by subsection (1) above the Company shall cause as little detriment and inconvenience as the circumstances permit to any person and shall make reasonable compensation for any damage caused to any such person by the exercise of such powers.

(3) (a) Not less than 42 days before executing any works under paragraph (b) of subsection (1) above affecting any apparatus the Company shall submit to the appropriate authority sufficient plans, sections and particulars of the proposed works for their approval which shall not be unreasonably withheld.

(b) The Company shall execute such works in accordance with such plans, sections and particulars as may be submitted to and approved by the appropriate authority or, if such approval be refused, as may be settled by arbitration and all such works shall be executed to the reasonable satisfaction of the appropriate authority and the Company shall at all times afford to the representative of the appropriate authority access for the purpose of inspecting such works.

(c) If any difference shall arise between the Company and any person with respect to any of the matters referred to in this subsection or, in subsection (2) above, as to the fact of damage or compensation therefor, such difference shall be referred to and determined by an arbiter to be agreed on or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either the Company or the person concerned; provided always that the award or decision of such arbiter shall not relieve the Company of their liability to make compensation to the person concerned for loss or damage and to relieve them from claims as provided in the said subsection (2).

(d) In this subsection "the appropriate authority" means the authority to whom it belongs or by whom it is repairable.

(4) Notwithstanding anything in this section the Company shall not—

(a) use any telegraphic line belonging to or used by British Telecommunications; or

(b) alter any such line except in accordance with and subject to the provisions of paragraphs (1) to (8) of section 7 of the Telegraph Act 1878.

1878 c. 76.

(5) In this section "alter" in the context of a telegraphic line has the same meaning as in the Telegraph Act 1878.

5. In the construction of the works the Company may deviate laterally from the line or situation thereof shown on the deposited plan to any extent not exceeding the limits of deviation shown on that plan and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding 5 metres upwards or downwards; Power to deviate.

Provided that no part of the works shall be constructed at a height above the surface of the carriageway of The Green or Martin's Lane, as the case may be, less than 5.1 metres or such greater height as the regional council and the district planning authority may reasonably require.

Correction of errors in deposited plan and book of reference.

6.—(1) If the deposited plan or the deposited book of reference are inaccurate in their description of any land, or in their statement or description of the ownership or occupation of any land, the Company after giving not less than 10 days' notice to the owner, lessee and occupier of the land in question, may apply to the sheriff for the correction thereof.

(2) If on any such application it appears to the sheriff that the misstatement or wrong description arose from mistake, he shall certify the fact accordingly and shall in his certificate state in what respect any matter is misstated or wrongly described.

1973 c. 65.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments, and a copy thereof in the Private Bill Office, House of Commons, with the sheriff clerk and with the proper officer (within the meaning of section 235 (3) of the Local Government (Scotland) Act 1973) of the district council and thereupon the deposited plan and the deposited book of reference shall be deemed to be corrected according to the certificate, and it shall be lawful for the Company to take the land or a servitude therein (as the case may be) and execute the works in accordance with the certificate.

(4) A person with whom a copy of the certificate is deposited under this section shall keep it with the other documents to which it relates.

(5) In this section "the sheriff" means the sheriff principal of and the sheriffs appointed for the Sheriffdom of Grampian, Highland and Islands and "the sheriff clerk" means the sheriff clerk of the Sheriff Court District of Aberdeen.

Temporary stoppage of highways.

7.—(1) The Company during and for the purposes of the construction, maintenance, renewal, enlargement or alteration of the works pursuant to section 3 (Power to make works) of this Order may temporarily stop up, divert or otherwise interfere with any highway and may for any reasonable time divert the traffic therefrom and prevent all persons from passing along, occupying or otherwise using the same under whatsoever right or title.

(2) The Company shall not exercise the powers of this section—

(a) without the consent of the highway authority and the district council, but any such consent shall not be unreasonably withheld and any question whether such consent has been unreasonably withheld shall be determined by the Secretary of State;

- (b) so as to deprive foot-passengers bona fide going to or from any building or land abutting on a highway of reasonable access to the building or land.

(3) The exercise of the powers conferred by this section in relation to a highway shall not affect the powers of British Telecommunications under the Telegraph Acts 1863 to 1916 to maintain, inspect, repair, renew or remove telegraphic lines or to open or break up that highway for any of those purposes.

8.—(1) Subject to subsection (2) below, the Company may stop up and cause to be discontinued as a public highway Martin's Lane; and after such stopping up all rights of way over or along the same or any part thereof shall be extinguished.

Stopping up of
Martin's Lane.

(2) No part of Martin's Lane shall be stopped up under the powers of this section until the Company are in possession of all lands abutting on both sides of that part except so far as the owners, lessees and occupiers of those lands may otherwise agree, and the Company have acquired the solum thereof from the district council or other owner for the time being of the solum.

(3) (a) As soon as practicable after the whole or any part of Martin's Lane has been stopped up in pursuance of subsection (1) above the Company shall send by post to British Telecommunications a notice informing it of such stopping up.

(b) Where the whole or any part of Martin's Lane has been so stopped up the following provisions of this paragraph shall, unless otherwise agreed in writing between the Company and British Telecommunications, have effect in relation to so much of any telegraphic line belonging to or used by British Telecommunications as is under, in, upon, over, along or across the land which by reason of the stopping up ceases to be a public highway (in this subsection referred to as "the affected line"):

- (i) the power of British Telecommunications to remove the affected line shall be exercisable notwithstanding the stopping up, so however that the said power shall not be exercisable as respects the whole or any part of the affected line after the expiration of a period of three months from the date of the sending of the notice referred to in paragraph (a) above unless before the expiration of that period British Telecommunications has given notice to the Company of its intention to remove the affected line or that part thereof, as the case may be;
- (ii) British Telecommunications may by notice in that behalf to the Company abandon the affected line or any part thereof and shall be deemed as respects the affected line or any part thereof to have abandoned it at the expiration of the said period of three months unless, before the expiration of that period, British Telecommunications has removed it or given notice of its intention to remove it;

- (iii) British Telecommunications shall be entitled to recover from the Company the expense of providing in substitution for the affected line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the affected line, a telegraphic line in such other place as it may reasonably require;
- (iv) where under sub-paragraph (ii) above British Telecommunications has abandoned the whole or any part of the affected line, it shall vest in the Company; and the provisions of the Telegraph Acts 1863 to 1916 shall not apply in relation to it as respects anything done or omitted after the abandonment thereof.

Acquisition of rights in or over certain highways.

9. Notwithstanding anything in any other enactment or rule of law, the Company and the district council may enter into and carry into effect agreements for the acquisition by the Company from the district council of such rights and interests as the district council may have in, and in the air space above—

- (1) The Green and Martin's Lane, being rights and interests appearing requisite for the construction, maintenance, renewal or alteration of the works;
- (2) so much of Martin's Lane as is stopped up under the powers of section 8 (Stopping up of Martin's Lane) of this Order;

and for the purposes of this Order and of any such agreement as aforesaid those rights and interests shall, as from the passing of the Act confirming this Order, be deemed to be free from any beneficial interest or other right of the public.

Power to transfer works.

10. At any time after the works have been completed the Company may from time to time transfer their interest in the same and their rights under this Order to another person; and the transferee shall have and may exercise to the extent authorised by his conveyance or lease (as the case may be) all or any of the powers conferred upon the Company by this Order in relation to the works but shall be subject to all the restrictions, liabilities and obligations in respect of the works to which the Company are subject and shall perform all the duties of the Company under this Order in respect of the same.

For protection of highway authority.

11.—(1) Before exercising the powers conferred by section 8 (Stopping up of Martin's Lane) of this Order in respect of a part only of Martin's Lane, the Company shall to the reasonable satisfaction of the highway authority construct on land owned by the Company a new highway (hereinafter referred as "the substitute road") connecting Carmelite Street to that part of Martin's Lane which is not to be stopped up.

(2) As soon as the highway authority certifies in writing that the substitute road has been constructed to its satisfaction the substitute road shall be deemed to be a highway, subject to subsections (3) and (4) below, and maintainable at the public expense.

(3) It shall be lawful for the Company, with the consent in writing of the highway authority, from time to time to realign or reposition the substitute road and the provisions of subsection (2) above—

- (a) shall apply to the substitute road as so realigned or repositioned as they applied to that road as formerly constructed;
- (b) shall cease to apply to the substitute road as formerly constructed as soon as the highway authority certifies thereunder that the road as so realigned or repositioned has been constructed to its satisfaction.

(4) Upon the stopping up of the whole of Martin's Lane under the powers of the said section 8, the foregoing provisions of this section shall cease to have effect.

12. Nothing in this Order shall prejudice, take away, diminish, alter or abridge—

General saving
for local
authorities, etc.

- (1) any statutory or other rights, powers, privileges, jurisdictions or authorities acquired by, vested in or enjoyed by the regional council or the district council; or
- (2) any rights, powers, privileges or jurisdictions vested in or enjoyed by the district council under the Building (Scotland) Acts 1959 and 1970 and any regulations made thereunder;

and all such rights, powers, privileges, jurisdictions and authorities shall continue to be held, exercised and enjoyed as if the Act confirming this Order had not been passed:

Provided that this section shall not apply to the powers and jurisdictions of the regional council or the district council vested in and enjoyed by them under section 59 of the Aberdeen Corporation (Streets Buildings Sewers &c.) Order 1936 in so far as those powers and jurisdictions would, apart from this proviso, have been exercisable in relation to the construction, maintenance and renewal of the works. 1936 c. lxxvii.

13. For the protection of the undertakers the provisions of this section shall, unless otherwise agreed in writing between the Company and the undertakers, apply and have effect—

For protection
of statutory
undertakers.

(1) In this section—

“apparatus” means any gas mains, cables, sewers, drains, water mains or pipes or other pipes or apparatus and any electric lines or works (respectively defined in the Electric Lighting Act 1882) belonging to the undertakers and includes any building, structure or works constructed for the lodging therein of apparatus; 1882 c. 56.

“in” in a context relating to apparatus includes under, over, across, along or upon;

“plans” means plans, sections, elevations, working drawings and specifications;

“ position ” includes depth;

“ relevant services ” means, in relation to the British Gas Corporation and the North of Scotland Hydro-Electric Board, a continuous supply of gas or electricity (as the case may be); and, in relation to the regional council, a continuous supply of street lighting, water and the free passage of water and sewage;

“ specified work ” means such part of any of the works as in its execution and maintenance will or may interfere with or affect any apparatus;

“ the undertakers ” means all or any of the following:—

the British Gas Corporation;

the regional council in relation to its several statutory functions as highway authority, sewerage authority and water authority and otherwise;

the North of Scotland Hydro-Electric Board.

References to the acts or defaults of the Company include the acts or defaults of their workmen or servants or of their contractors or agents or the workmen or servants of such contractors or agents:

(2) The powers conferred on the Company by paragraph (b) of subsection (1) of section 4 (Subsidiary works) of this Order shall not be exercised in respect of any apparatus otherwise than in accordance with the provisions of this section:

(3) At least 42 days before commencing the execution of any specified work the Company shall give the undertakers notice thereof in writing accompanied by plans of such specified work showing the manner in which and the materials with which the same is to be executed and also showing the means to be employed by the Company not only for protecting the apparatus during the execution of such specified work and for securing the relevant services but also for making good any damage to or interference with the apparatus resulting from the execution of such specified work; and, if it should appear to the undertakers that such specified work will interfere with, damage or endanger their apparatus or materially impede the relevant services the undertakers may within 35 days of the receipt of such notice require the Company to alter the position of the apparatus or to support the same or to substitute such other apparatus as may be required by the undertakers in such manner as may be agreed or determined by arbitration in accordance with the provisions of this section:

Provided that if the undertakers do not requisition the Company as aforesaid the Company may proceed with the execution of such specified work in accordance with the notice given by them and the accompanying plans:

(4) Where a requisition has been given by the undertakers under the last foregoing paragraph the works or measures agreed upon or determined as aforesaid shall be executed by and at the expense of the Company but to the satisfaction of and under the superintendence of the undertakers (if after notice given to them by the Company of the time and place of such execution they choose to be represented thereat) and the whole reasonable expenses incurred by the undertakers by or through such superintendence shall be paid by the Company:

Provided that the undertakers may intimate by notice in writing to the Company within 14 days after the receipt by the undertakers of notice of the intended commencement of the specified work their intention themselves to do and execute such works or measures and shall, following such intimation, do and execute those works with all reasonable despatch; and the Company shall on the completion thereof pay to the undertakers the reasonable expenses incurred by them in the execution of such works or measures as may be agreed on or determined as aforesaid:

(5) If the position of any of the apparatus is intended to be altered by the Company or the undertakers or if other apparatus is to be substituted therefor as provided for in paragraphs (3) and (4) of this section the undertakers may within 21 days of the receipt by them of the notice referred to in the said paragraph (3) require the Company to or may within the said period notify the Company of their intention themselves to substitute and may substitute apparatus of a greater size than the apparatus so intended to be altered or removed and in that event the undertakers shall pay to the Company or shall themselves bear the additional cost attributable to the substitution of such larger apparatus:

(6) The Company shall indemnify the undertakers against all claims, demands, costs, damages and expenses made or taken against or recovered from or incurred by the undertakers by reason or in consequence of any damage done by the Company to any apparatus or of any interruption in the relevant services which may without the written authority of the undertakers be in any way occasioned either by reason of the execution by the Company of the works or by the acts or defaults (in, or in connection with such execution) of the Company:

Provided that the undertakers shall give to the Company notice of any claim or demand made against them which in the opinion of the undertakers is a claim or demand for which the Company may be liable under this paragraph and no settlement or compromise of any such claim or demand shall be made without the consent in writing of the Company:

(7) Notwithstanding the stopping up of any highway under the powers of section 7 (Temporary stoppage of highways) or section 8 (Stopping up of Martin's Lane) of this Order the undertakers may exercise the same rights of access to any apparatus as they enjoyed immediately prior to the enactment hereof:

Provided that in exercising the said rights of access the undertakers shall not interrupt the execution, maintenance or use of any of the Company's works and the undertakers shall compensate the Company for any damage to such works occasioned by the exercise of the said rights:

(8) The undertakers shall if so requested by the Company furnish to the Company all information in their possession relative to the position and nature of any apparatus which in the opinion of the chief engineer of the undertakers might be affected by any of the works:

(9) Any difference between the Company and the undertakers in connection with any of the provisions of this section or with anything contained in this Order shall be determined by arbitration.

For protection
of district
council.

14. For the protection of the district council the following provisions shall, unless otherwise agreed in writing between the Company and the district council, have effect:—

(1) If following the construction by the Company of Work No. 1 the district council (or any person authorised in writing by the district council to undertake the same on their behalf) construct pedestrian ways in the open on each side of that work so as to enable passage on foot between that work and those pedestrian ways, the Company shall, if so requested in writing by the district council, form or allow to be formed a reasonably sufficient point of access on foot, with such doors or other means of closure thereof as may be reasonably necessary, on each of the western and the eastern sides of that work and at the floor level in that work serving the main ground floor shopping level of Union Street or at such other level as may be agreed between the district council and the Company; and such points of access shall be formed in such manner, at such times and at such cost as may be reasonably agreed.

(2) Nothing in this section shall require the Company—

(a) to afford access to their premises except as mentioned in paragraph (3) below;

(b) to comply with any licence, regulation or other requirement under any enactment of the fire authority or any other authority arising from or in connection with the provision of those points of access or the existence of the pedestrian ways;

(c) to so arrange the furnishings and disposal of their premises in the vicinity of the westerly and easterly points of access as to afford more than a sufficient passage for persons on foot between those points;

and the district council shall effectively indemnify and hold harmless the Company from and against all claims and demands arising out of or in connection with the provision of the pedestrian ways or the points of access.

(3) (a) Access pursuant to paragraph (2)(a) above shall be afforded—

(i) to persons only who appear bona fide to intend to shop at the premises;

(ii) during the trading hours only of the Company's premises at 111–119 Union Street;

but access may be suspended temporarily or discontinued permanently or the hours during which access is available may be restricted in either case if it appears to the Company that the availability of access is subject to abuse (whether by its use by persons not bona fide intending to shop at the premises, or otherwise) or affects adversely trading conditions in the premises and that, despite all reasonable efforts by the Company to avoid such abuse or adverse effects on trading conditions, the same continues;

(b) The Company shall consult with the district council with respect to any suspension or discontinuance of access under this paragraph, and if reasonably practicable before suspension or discontinuance is imposed by the Company.

(4) Any difference which may arise under this section between the district council and the Company shall be determined by arbitration.

15. For the protection of the district council and of the stallholders and traders engaged in the market carried on on The Green the following provisions shall, unless otherwise agreed in writing between the Company, the district council and the traders' representative, have effect:—

For protection
of The Green
Market.

(1) In this section—

“ the market ” means the market so carried on;

“ the temporary market land ” means the land of the Company abutting upon The Green and shown edged red on the plan marked “ Plan A ” signed by the Right Honourable the Earl Cathcart one copy of which is deposited with the office of the Secretary of State and another is deposited at the offices of the district council;

“ the traders ” means the stallholders and traders for the time being engaged in the market;

“ the traders' representative ” means J. Penny or such other of the traders as for the time being appears to the Company to be the authorised representative of the traders.

(2) Before and during construction of the works the Company shall from time to time consult upon the timetable for and manner of construction of the works with the district council and the traders' representative and, in particular, the Company—

- (a) shall so consult upon what arrangements are necessary to secure the continuance of the holding of the market without interruption during construction of the works upon the days and occasions hitherto customary and its reinstatement on The Green after completion of the works; and
- (b) shall use their best endeavours, in consultation with the district council and the traders' representative, to assist the traders in obtaining all licences and permissions necessary to the continuance of the holding of the market and its said reinstatement, from the local and statutory or other authorities concerned.

(3) The Company shall—

- (a) make available (properly surfaced and with the existing hoardings abutting The Green removed) on licence without payment for use by the traders for the purposes of the market on the days and occasions hitherto customary during construction of the works the temporary market land to the intent that there should be available for such use during such construction—
 - (i) the temporary market land;
 - (ii) so much of the southerly footpath of The Green as abuts on the temporary market land; and
 - (iii) subject to the approval of the district council and the highway authority, so much of the northerly footpaths and carriageways of The Green as hitherto have been used for the purposes of the market and can reasonably continue to be so used during such construction; and
- (b) before commencing construction of the works and in consultation with the district council and the traders' representative, erect a sign indicating the market at the frontage of the temporary market land sufficiently drawing attention to the presence thereon of the market during construction of the works.

(4) During the hours of operation of the market any access to any car park owned by the Company on the north side of The Green shall remain closed.

Arbitration

16. Where under this Order any difference is to be referred to or settled by arbitration, the reference shall be to a single arbiter to be agreed between the parties or, failing agreement, to be appointed on the application of either party (after notice in writing to the other)—

- (a) in any case where the matter arises under section 13 (For protection of statutory undertakers) of this Order, by the President of the Institution of Civil Engineers;
- (b) in any case where the matter arises under section 14 (For protection of district council) of this Order, by the sheriff principal of Grampian, Highland and Islands.

17.—(1) Section 274 of the Town and Country Planning (Scotland) Act 1972 (which for the avoidance of doubt declares that the provisions of that Act and any restrictions or powers thereby imposed or conferred in relation to land apply to land notwithstanding that provision is made by any local Act passed before or during the Session of Parliament held during the regnal years 10 & 11 Geo. 6 for authorisation or regulation of development of the land) shall apply to this Order as if it had been passed during that session ; and accordingly the Town and Country Planning (Scotland) Act 1972 and orders, regulations, rules, schemes and directions, made or given thereunder shall apply to development authorised by this Order: Saving for Town and Country Planning Acts. 1972 c. 52.

Provided that nothing in Article 3 of, and Class X in Schedule 1 to, the Town and Country Planning (General Development) (Scotland) Order 1975 (which permit development authorised by any local or private Act or by any Order approved by both Houses of Parliament, being an Act or Order designating specifically both the nature of the development thereby authorised and the land on which it may be carried out) shall apply with respect to the development authorised by this Order. S.I. 1975/679 (S. 107).

(2) In this section the reference to Article 3 of and Class X in Schedule 1 to the Town and Country Planning (General Development) (Scotland) Order 1975 includes a reference to corresponding provisions of any general order superseding that Order made under section 21 of the Town and Country Planning (Scotland) Act 1972 or any corresponding provisions of an Act repealing that section.

18. The costs, charges and expenses of and incidental to the preparing for, obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Company. Costs of Order.

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Woolworths (Aberdeen Development) Order Confirmation Act 1982

CHAPTER xvi

ARRANGEMENT OF SECTIONS

Section

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